

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3888

By: Cantrell

AS INTRODUCED

An Act relating to mental health; amending Section 1, Chapter 202, O.S.L. 2024 (43A O.S. Supp. 2025, Section 3-335) which relates to behavioral health certification or license applicants and renewals, required information; modifying definition; amending 59 O.S. 2021, Section 1871, 1875, 1876, 1877, 1878, 1879, 1881, 1882, 1883, and 1884, which relates to the Licensed Alcohol and Drug Counselors Act; replacing the Oklahoma Board of Licensed Alcohol and Drug Counselors with the Oklahoma Department of Mental Health and Substance Abuse Services; amending 59 O.S. 2021, Section 1902, 1905, 1906, 1907, 1908, 1909, 1911, 1912, 1913.1, 1916.1, 1917, 1918, and 1919, which relates to the Licensed Professional Counselors Act; replacing the State Board of Behavioral Health Licensure with the Oklahoma Department of Mental Health and Substance Abuse Services; amending 59 O.S. 2021, Section 1925.2, 1925.5, 1925.6, 1925.7, 1925.8, 1925.9, 1925.15, 1925.17, and 1925.18, which relates to the Marital and Family Therapist Licensure Act; replacing the State Board of Behavioral Health Licensure with the Oklahoma Department of Mental Health and Substance Abuse Services; amending 59 O.S. 2021, Section 1931, 1934, 1935, 1936, 1937, 1938, 1940, 1941, 1942, 1944, 1945, 1946, 1947, 1948, and 1949, which relates to the Licensed Behavioral Practitioner Act; replacing the State Board of Behavioral Health Licensure with the Oklahoma Department of Mental Health and Substance Abuse Services; amending 63 O.S. 2021, Section 1-2506.1, as amended by Section 1, Chapter 45, O.S.L. 2024 (63 O.S. Supp. 2025, Section 1-2506.1), which relates to authority of first responders to administer emergency opiate antagonists; updating statutory references; repealing

59 O.S. 2021, Section 1873, as last amended by  
Section 1, Chapter 266, O.S.L. 2025 (59 O.S. Supp.  
2025, Section 1873), which relates to the Oklahoma  
Board of Licensed Alcohol and Drug Counselors;  
repealing 59 O.S. 2021, Section 1873, as last amended  
by Section 1, Chapter 235, O.S.L. 2025 (59 O.S. Supp.  
2025, Section 1873), which relates to the Oklahoma  
Board of Licensed Alcohol and Drug Counselors;  
repealing 59 O.S. 2021, Section 1874, which relates  
to officers, quorum, and meetings for the Oklahoma  
Board of Licensed Alcohol and Drug Counselors;  
repealing 59 O.S. 2021, Section 6001, as last amended  
by Section 1, Chapter 89, O.S.L. 2023 (59 O.S. Supp.  
2025, Section 6001), which relates to the State Board  
of Behavioral Health Licensure; and providing an  
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 202, O.S.L.  
2024 (43A O.S. Supp. 2025, Section 3-335), is amended to read as  
follows:

Section 3-335. A. As used in this section:

1. "Board" means any of the following:

- a. the State Board of Examiners of Psychologists, or
- b. ~~the State Board of Behavioral Health Licensure,~~
- c. ~~the Oklahoma State Board of Licensed Social Workers,~~
- ~~or~~
- d. ~~the Oklahoma Board of Licensed Alcohol and Drug  
Counselors;~~

2. "Licensed mental health professional" means an individual  
who holds any type of license pursuant to the:

- a. Psychologists Licensing Act,
- b. Psychology Interjurisdictional Compact,
- c. Licensed Professional Counselors Act,
- d. Janet Phillips Act of 2023,
- e. Marital and Family Therapist Licensure Act,
- f. Social Worker's Licensing Act, or
- g. Licensed Alcohol and Drug Counselors Act; and

3. "Certified mental health professional" means an individual who holds any type of certification pursuant to the Unified Community Mental Health Services Act.

B. Every applicant for a behavioral health certification or license issued by a designated board shall provide the following information:

1. Demographic information, including race, ethnicity, gender, date of birth, and languages spoken;

2. Educational background, training information, internship information, if applicable, and location of internship or program attended; and

3. If the applicant has any other mental health certifications or licenses.

C. Every mental health professional who is renewing a behavioral health certification or license issued by a designated board shall report the following information:

1        1. Changes to demographic information required upon initial  
2 application for licensure or certification;

3        2. Workforce retention information, including, but not limited  
4 to, anticipated changes in licensure status or retirement; and

5        3. Workforce practice trends, including, but not limited to:

6            a. practice specialization, if applicable,

7            b. practice location and physical address, if applicable,

8            c. service delivery area, by county,

9            d. if the licensee is currently using their license and

10            if its average use is between one (1) through ten

11            (10), eleven (11) through twenty (20), twenty-one (21)

12            through thirty (30), or over thirty-one (31) hours of

13            client-facing hours per week, and

14            e. the use of telehealth.

15        D. The boards designated in subsection A of this section shall  
16 promulgate rules to effectuate the provisions of this section.

17        E. The boards designated in subsection A of this section shall  
18 furnish de-identified annual licensure and certification data to the  
19 Oklahoma Department of Mental Health and Substance Abuse Services.

20        F. The Oklahoma Department of Mental Health and Substance Abuse  
21 Services shall compile the de-identified information collected in  
22 this section into an annual report. The report shall not contain  
23 any personal identifying information. The annual report shall be  
24 posted on the agency's website and submitted to the President Pro

1 Tempore of the Oklahoma State Senate, the Speaker of the Oklahoma  
2 House of Representatives, and the chairs of the committees with  
3 responsibility over public health in both chambers of the  
4 Legislature.

5 G. Nothing in this section shall be interpreted to expand the  
6 amount of public-facing data about Oklahoma's individual behavioral  
7 health licensees.

8 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1871, is  
9 amended to read as follows:

10 Section 1871. For purposes of the Licensed Alcohol and Drug  
11 Counselors Act:

12 1. "Alcohol and drug counseling" means the application of  
13 counseling principles for:

14 a. substance use disorders, or

15 b. substance abuse disorders and co-occurring disorders  
16 in order to:

17 (1) develop an understanding of substance abuse and  
18 co-occurring disorders,

19 (2) permit licensed alcohol and drug counselors to  
20 prevent, diagnose or treat substance abuse and to  
21 prevent, diagnose or treat co-occurring  
22 disorders,

23 (3) permit licensed alcohol and drug counselors to  
24 conduct assessments or diagnoses for the purpose

1 of establishing treatment goals and objectives  
2 for substance abuse and to establish treatment  
3 goals and objectives for co-occurring disorders,  
4 and

5 (4) plan, implement or evaluate treatment plans using  
6 counseling treatment interventions;

7 2. "Alcohol and drug counseling", as a certified alcohol and  
8 drug counselor, means the application of counseling principles for:

9 a. substance use disorders, or

10 b. substance abuse disorders in order to:

11 (1) develop an understanding of alcoholism and drug  
12 dependency problems,

13 (2) prevent, diagnose or treat alcohol and drug  
14 dependency problems,

15 (3) conduct assessments or diagnosis for the purpose  
16 of establishing treatment goals and objectives  
17 for substance abuse,

18 (4) plan, implement or evaluate treatment plans using  
19 counseling treatment interventions for substance  
20 abuse, and

21 (5) permit certified alcohol and drug counselors  
22 certified in co-occurring disorders to recognize  
23 co-occurring disorders and integrate that  
24 recognition into substance abuse treatment,

provided the certified alcohol and drug counselor is working in a nationally accredited or Oklahoma Department of Mental Health and Substance Abuse Services certified agency and is working under the supervision of a supervisor approved by the Oklahoma Board of Licensed Alcohol And Drug Counselors pursuant to paragraph 13 of this section and who is a licensed alcohol and drug counselor that is licensed in mental health and substance abuse, a licensed alcohol and drug counselor that holds a co-occurring certification from the Board or a licensed mental health professional. Certified alcohol and drug counselors shall meet or exceed the Certified Co-Occurring Disorders Professional Standards as laid out in the standards promulgated by the International Certification & Reciprocity Consortium, any successor organization to the International Certification and Reciprocity Consortium or another national or international organization that has similar standards equal to or higher than the International Certification and Reciprocity Consortium.

1 Certified alcohol and drug counselors may not provide private or  
2 independent practice for co-occurring disorders;

3 3. ~~"Board" means the Oklahoma Board of Licensed Alcohol and~~  
4 ~~Drug Counselors, created by Section 1873 of this title;~~

5 4. "Certified alcohol and drug counselor" means any person who  
6 is not exempt pursuant to the provisions of Section 1872 of this  
7 title and is not licensed under the Licensed Alcohol and Drug  
8 Counselors Act, but who provides alcohol and drug counseling  
9 services within the scope of practice while employed by an entity  
10 certified by the Department of Mental Health and Substance Abuse  
11 Services, or who is exempt from such certification, ~~or who is under~~  
12 ~~the supervision of a person recognized by the Oklahoma Board of~~  
13 ~~Licensed Alcohol and Drug Counselors as a supervisor.~~ A certified  
14 alcohol and drug counselor may provide counseling services for co-  
15 occurring disorders if he or she has been certified by the ~~Board~~  
16 Department to provide counseling as provided in this section for co-  
17 occurring disorders;

18 5. 4. "Certified alcohol and drug counselor candidate" or  
19 "licensed alcohol and drug counselor candidate" means a person who  
20 has made application for certification or licensure and who has been  
21 authorized by the ~~board~~ Department to practice alcohol and drug  
22 counseling under supervision while completing the required work  
23 experience;



1       ~~6.~~ 5. "Consulting" means interpreting or reporting scientific  
2 fact or theory in counseling to provide assistance in solving  
3 current or potential problems of individuals, groups or  
4 organizations;

5       ~~7.~~ 6. "Co-occurring disorder" means a disorder in which  
6 individuals have at least one mental health disorder as defined in  
7 the most current version of the Diagnostic and Statistical Manual  
8 and a substance abuse disorder as defined in paragraph 14 of this  
9 section. While these disorders may interact differently in any one  
10 person at least one disorder of each type can be diagnosed  
11 independently of the other;

12       7. "Department" means the Oklahoma Department of Mental Health  
13 and Substance Abuse Service;

14       8. "International Certification & Reciprocity Consortium  
15 Standards" means the standards enumerated by the International  
16 Certification and Reciprocity Consortium, any successor organization  
17 to the Consortium or another national or international organization  
18 that has similar standards equal to or higher than the International  
19 Certification and Reciprocity Consortium, that includes requirements  
20 regarding education, exams, degrees, coursework, supervision,  
21 continuing education, and ethics for individuals seeking a certified  
22 co-occurring disorders professional certification from the  
23 Consortium. The requirement to meet these standards shall never  
24

1 fall below the requirements set forth by the Consortium on June 1,  
2 2008-;

3 9. "Licensed alcohol and drug counselor" means any person who  
4 provides alcohol and drug counseling services within the scope of  
5 practice, including co-occurring disorders, for compensation to any  
6 person and is licensed pursuant to the provisions of the Licensed  
7 Alcohol and Drug Counselors Act. The term "licensed alcohol and  
8 drug counselor" shall not include those professions exempted by  
9 Section 1872 of this title;

10 10. "Licensed alcohol and drug counselor/mental health" or  
11 "LADC/MH" means a licensed alcohol and drug counselor who has been  
12 determined by the ~~Board~~ Department to meet the requirements to  
13 include the assessment, diagnosis, and treatment of mental health  
14 disorders within the counselor's scope of practice, regardless of  
15 whether the mental health disorders are co-occurring;

16 11. "Recovery" means a voluntary lifestyle, maintained as the  
17 result of one's diagnosis, treatment or self-disclosure of a  
18 substance abuse disorder, characterized by complete abstinence from  
19 alcohol, and all other mind altering drugs or chemicals except  
20 tobacco and drugs used as prescribed by an authorized licensed  
21 medical professional and the absence of pathological compulsive  
22 behavior;

23 12. "Relapse" means the resumption of use of alcohol or other  
24 mind-altering drugs or chemicals, except tobacco and drugs used as

1 prescribed by an authorized licensed medical professional, or  
2 resumption of pathological compulsive behavior, despite having  
3 previously been diagnosed, treated or self-disclosed as having a  
4 substance abuse disorder and been in recovery;

5 13. "Supervisor" means:

- 6 a. a licensed alcohol and drug counselor who meets the  
7 requirements established by the ~~board~~ Department to  
8 supervise certified alcohol and drug counselors,  
9 certified alcohol and drug counselor candidates or  
10 licensed alcohol and drug counselor candidates and has  
11 been approved by the Oklahoma ~~Board of Licensed~~  
12 ~~Alcohol and Drug Counselors~~ Department of Mental  
13 Health and Substance Abuse Services as a supervisor,  
14 or  
15 b. a licensed mental health professional approved by the  
16 ~~Board~~ Department to supervise certified alcohol and  
17 drug counselors who have received co-occurring  
18 certification, certified alcohol and drug counselors  
19 who are candidates for co-occurring certification or  
20 licensed alcohol drug and counselors who are  
21 candidates for co-occurring certification;

22 14. "Substance abuse disorder" means the repeated pathological  
23 use of substances including alcohol and other mind-altering drugs or  
24 chemicals, except tobacco, or repeated pathological compulsive

1 behaviors which cause physical, psychological, emotional, economic,  
2 legal, social or other harm to the individual afflicted or to others  
3 affected by the individual's affliction. As used in the Licensed  
4 Alcohol and Drug Counselors Act, substance abuse disorder shall  
5 include not only those instances where withdrawal from or tolerance  
6 to the substance is present but also those instances involving use  
7 and abuse of substances;

8 15. "Supervised practicum experience" means volunteer or paid  
9 work experience in the core functions of substance abuse counseling  
10 as delineated by the Oklahoma Board of Licensed Alcohol and Drug  
11 Counselors;

12 16. "Supervised work experience" means voluntary or paid work  
13 experience in providing alcohol and drug counseling services to  
14 individuals under the supervision of a licensed alcohol and drug  
15 counselor; and

16 17. "Scope of practice" means acting within the boundaries of  
17 competence based on education, training, supervised experience,  
18 state and national professional credentials, and appropriate  
19 professional experience.

20 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1875, is  
21 amended to read as follows:

22 Section 1875. In addition to any other powers and duties  
23 imposed by law, the Oklahoma ~~Board of Licensed Alcohol and Drug~~  
24

1 ~~Counselors~~ Department of Mental Health and Substance Abuse Services

2 shall have the power and duty to:

3 1. Promulgate rules necessary to effectuate the provisions of  
4 the Licensed Alcohol and Drug Counselors Act, and to make orders as  
5 it may deem necessary or expedient in the performance of its duties;

6 2. Prepare, conduct and grade examinations of persons who apply  
7 for certification or licensure as an alcohol and drug counselor and  
8 certification for co-occurring disorders;

9 3. Determine a satisfactory passing score on such examinations  
10 and issue certifications and licenses to persons who pass the  
11 examinations or who are otherwise entitled to certification and  
12 licensure;

13 4. Determine eligibility for certification and licensure and  
14 requirements for approval as a supervisor;

15 5. Issue and renew certificates and licenses for alcohol and  
16 drug counselors and certification for co-occurring disorders;

17 6. Upon good cause shown:

- 18 a. deny the issuance of a certificate or license,  
19 b. suspend, revoke or refuse to renew a certificate or  
20 license,  
21 c. place a holder of a certificate or a licensee on  
22 probation, or  
23  
24

d. suspend, revoke, refuse to renew or otherwise sanction a certified alcohol and drug counselor candidate or a licensed alcohol and drug counselor candidate;

7. Establish and levy administrative penalties against any person or entity who violates any of the provisions of the Licensed Alcohol and Drug Counselors Act or any rule promulgated or order issued pursuant thereto;

8. Obtain an office, secure facilities, and employ, direct, discharge and define the duties and set the salaries of office personnel as deemed necessary by the ~~Board~~ Department;

9. Initiate disciplinary, prosecution and injunctive proceedings against any person or entity who violates any of the provisions of the Licensed Alcohol and Drug Counselors Act, or any rule promulgated or order issued pursuant thereto; provided, the ~~Board~~ Department shall be exempt from providing surety for the costs in connection with the commencement of any legal proceedings under the provisions of the Licensed Alcohol and Drug Counselors Act;

10. Investigate alleged violations of the Licensed Alcohol and Drug Counselors Act, or the rules, orders or final orders of the ~~Board~~ Department and impose as part of any disciplinary action the payment of costs expended by the ~~Board~~ Department for any legal fees and costs, including, but not limited to, probation and monitoring, staff time, salary and travel expenses, witness fees and attorney fees;

1 11. Promulgate rules of conduct governing the practice of  
2 certified and licensed alcohol and drug counselors, certified  
3 alcohol and drug counselor candidates, licensed alcohol and drug  
4 counselor candidates and supervisors;

5 12. Keep accurate and complete records of its proceedings;

6 13. Promulgate rules for continuing education requirements for  
7 certified and licensed alcohol and drug counselors, and supervisors;

8 14. Issue a certificate or license by endorsement to an  
9 applicant certified or licensed to practice as a certified or  
10 licensed alcohol and drug counselor in another state if the ~~Board~~  
11 Department deems such applicant to have qualifications that are  
12 comparable to those required under the Licensed Alcohol and Drug  
13 Counselors Act and, if the ~~Board~~ Department deems the applicant as  
14 meeting the standards, provided by rules, for certification or  
15 licensure by endorsement;

16 15. Require certified and licensed drug and alcohol counselors  
17 to maintain their patient records for a period of seven (7) years  
18 from the date the service was provided; and

19 16. Perform such other duties and have such other  
20 responsibilities as necessary to implement the provisions of the  
21 Licensed Alcohol and Drug Counselors Act.

22 SECTION 4. AMENDATORY 59 O.S. 2021, Section 1876, is  
23 amended to read as follows:  
24

1       Section 1876. A. Unless exempt pursuant to Section 1872 of  
2 this title, any person wishing to practice alcohol and drug  
3 counseling in this state shall obtain a certificate or license to  
4 practice pursuant to the provisions of the Licensed Alcohol and Drug  
5 Counselors Act.

6       B. An application for a certificate or license to practice as a  
7 certified or licensed alcohol and drug counselor shall be made to  
8 the Oklahoma ~~Board of Licensed Alcohol and Drug Counselors~~  
9 Department of Mental Health and Substance Abuse Services in writing.  
10 Such application shall be on a form and in a manner prescribed by  
11 the ~~Board~~ Department. The application shall be accompanied by the  
12 fee required by the Licensed Alcohol and Drug Counselors Act, which  
13 shall be retained by the ~~Board~~ Department and not returned to the  
14 applicant.

15       C. Each applicant for a certificate or license to practice as a  
16 certified or licensed alcohol and drug counselor shall:

17       1. Pass an examination based on standards established by the  
18 International Certification and Reciprocity Consortium, any  
19 successor organization to the International Certification and  
20 Reciprocity Consortium or another national or international  
21 organization recognized by the ~~Board~~ Department to have similar  
22 standards equal to or higher than the International Certification  
23 and Reciprocity Consortium;

24       2. Be at least twenty-one (21) years of age;



1        3. Not have engaged in, nor be engaged in, any practice or  
2 conduct which would be grounds for denying, revoking or suspending a  
3 license pursuant to the provisions of the Licensed Alcohol and Drug  
4 Counselors Act; and

5        4. Otherwise comply with the rules promulgated by the ~~Board~~  
6 Department pursuant to the provisions of the Licensed Alcohol and  
7 Drug Counselors Act.

8        D. In addition to the qualifications specified by the  
9 provisions of subsection C of this section, an applicant for a  
10 license to practice as a licensed alcohol and drug counselor shall:

11        1. Have at least a master's degree in alcohol and substance  
12 abuse counseling or other clinical counseling field recognized by  
13 the Oklahoma ~~Board of Licensed Alcohol and Drug Counselors~~  
14 Department of Mental Health and Substance Abuse Services that  
15 includes, at a minimum, the following knowledge areas and graduate  
16 credit hours from a college or university accredited by an agency  
17 recognized by the United States Department of Education:

- 18            a. three courses in foundational knowledge, including one  
19                course in alcohol and drug addiction, one course in  
20                drug and alcohol counseling theory, and one course in  
21                the pharmacology of drugs and abuse,  
22            b. three courses in assessment and treatment of  
23                behavioral health problems, which may include group  
24                dynamics, individual and family counseling skills,

specific counseling approaches, assessment methods,  
community resources and referral, or other courses  
primarily related to the assessment and treatment of  
behavioral health problems,

- c. one course in human development,
- d. one course in psychopathology,
- e. one course in multicultural and cultural competency  
issues,
- f. one course in family systems theory,
- g. one course in addiction in the family theory,
- h. one course in addiction in the family counseling,
- i. one course in ethics, which includes established  
ethical conduct for alcohol and drug counselors,
- j. one course in research methods, and
- k. one three-hour practicum/internship in the field of  
drug and alcohol counseling of at least three hundred  
(300) clock hours.

All courses shall be graduate level courses and shall be three  
(3) semester hours or four (4) quarter credit hours which shall  
include a minimum of forty-five (45) class hours for each course;

2. Have successfully completed at least one (1) year of full-  
time supervised work experience providing behavioral health  
services. For the purpose of the Licensed Alcohol and Drug  
Counselors Act, one (1) year of full-time work experience shall mean

1 two thousand (2,000) hours of work experience, of which at least one  
2 thousand (1,000) hours shall consist of direct client contact; or

3 3. Be a licensed mental health professional as defined in  
4 Section 1-103 of Title 43A of the Oklahoma Statutes and have  
5 completed a minimum of fifteen (15) hours in master's level  
6 substance abuse specific coursework, including, but not limited to,  
7 chemical addiction, counseling, alcohol/drug counseling theory,  
8 pharmacology of drugs and abuse, assessment and treatment of alcohol  
9 and drug problems, theories in family addiction, and/or family  
10 addiction counseling.

11 E. The scope of practice of a licensed alcohol and drug  
12 counselor who meets the educational requirements set forth in  
13 paragraph 1 of subsection D of this section may include the  
14 assessment, diagnosis, and treatment of mental health disorders.  
15 Licensees who have been determined by the ~~Board~~ Department to meet  
16 these requirements shall have the designation "licensed alcohol and  
17 drug counselor/mental health" or "LADC/MH" noted on their license  
18 and wallet card.

19 F. The scope of practice of a licensed alcohol and drug  
20 counselor who made application for license or who was licensed prior  
21 to the effective date of the educational requirements set forth in  
22 paragraph 1 of subsection D of this section shall not include the  
23 assessment, diagnosis, and treatment of mental health disorders  
24 unless:

1        1. The licensed alcohol and drug counselor holds a master's  
2 degree that meets the educational requirements for licensure in the  
3 following behavioral health professions:

4            a. licensed professional counselor as defined in Section  
5                1902 of this title,

6            b. licensed clinical social worker as defined in Section  
7                1250.1 of this title,

8            c. licensed marital and family therapist as defined in  
9                Section 1925.2 of this title, or

10           d. licensed behavioral practitioner as defined in Section  
11                1931 of this title; or

12        2. The licensed alcohol and drug counselor holds a valid Co-  
13 Occurring Disorders Certification based on standards established by  
14 the International Certification and Reciprocity Consortium, any  
15 successor organization to the International Certification and  
16 Reciprocity Consortium, or any other national or international  
17 organization recognized by the ~~Board~~ Department to have similar  
18 standards equal to or higher than the International Certification  
19 and Reciprocity Consortium.

20        G. In addition to the qualifications specified in subsection C  
21 of this section, each applicant for a certificate to practice as a  
22 certified alcohol and drug counselor shall have:

23           1. At a minimum, a bachelor's degree in a behavioral science  
24 field that is recognized by the Oklahoma ~~Board of Licensed Alcohol~~

1 ~~and Drug Counselors~~ Department of Mental Health and Substance Abuse  
2 Services as appropriate to practice as a certified drug and alcohol  
3 counselor in this state;

4 2. Successfully completed at least two (2) years of full-time  
5 supervised work experience. For the purpose of the Licensed Alcohol  
6 and Drug Counselors Act, "two years of full-time work experience"  
7 shall be defined as four thousand (4,000) hours of work experience  
8 of which at least two thousand (2,000) hours shall consist of  
9 providing alcohol and drug counseling services to an individual  
10 and/or the individual's family;

11 3. Successfully completed at least two hundred seventy (270)  
12 clock hours of education related to alcohol and drug counseling  
13 subjects, theory, practice or research;

14 4. Successfully completed, as part of or in addition to the  
15 education requirements established in paragraph 3 of this  
16 subsection, a minimum of forty-five (45) clock hours of specialized  
17 training approved by the ~~Board~~ Department in identifying co-  
18 occurring disorders and making appropriate referrals for treatment  
19 of co-occurring disorders; and

20 5. Successfully completed at least three hundred (300) hours of  
21 supervised practicum experience in the field of drug and alcohol  
22 counseling.

23 H. Any licensed or certified alcohol and drug counselor wishing  
24 to be certified for co-occurring disorders in this state may obtain

1 such certification pursuant to the provisions of the Licensed  
2 Alcohol and Drug Counselors Act.

3 I. An application by a licensed or certified alcohol and drug  
4 counselor for certification for co-occurring disorders shall be made  
5 to the Oklahoma ~~Board of Licensed Alcohol and Drug Counselors~~  
6 Department of Mental Health and Substance Abuse Services in writing.  
7 Such application shall be on a form and in a manner prescribed by  
8 the ~~Board~~ Department. The application shall be accompanied by the  
9 fee required by Section 1884 of this title, which shall be retained  
10 by the ~~Board~~ Department and not returned to the applicant.

11 J. Each applicant for certification for co-occurring disorders  
12 shall:

13 1. Be a licensed or certified alcohol and drug counselor in  
14 good standing with the ~~Board~~ Department;

15 2. Meet the requirements promulgated by the ~~Board~~ Department to  
16 establish the applicant's competency to include treatment of co-  
17 occurring disorders within his or her scope of practice;

18 3. Be at least twenty-one (21) years of age;

19 4. Not have engaged in, nor be engaged in, any practice or  
20 conduct which would be grounds for denying, revoking or suspending a  
21 license pursuant to the provisions of the Licensed Alcohol and Drug  
22 Counselors Act; and  
23  
24

1        5. Otherwise comply with the rules promulgated by the ~~Board~~  
2 Department pursuant to the provisions of the Licensed Alcohol and  
3 Drug Counselors Act.

4        K. Applicants with degrees from schools outside the United  
5 States may qualify with ~~Board~~ Department approval by providing the  
6 ~~Board~~ Department with an acceptable comprehensive evaluation of the  
7 degree performed by a foreign credential evaluation service that is  
8 acceptable to the ~~Board~~ Department, and any other requirement the  
9 ~~Board~~ Department deems necessary.

10        SECTION 5.        AMENDATORY        59 O.S. 2021, Section 1877, is  
11 amended to read as follows:

12        Section 1877. A. 1. On and after January 1, 2005, before any  
13 person is eligible to receive a license to practice as a certified  
14 or licensed alcohol and drug counselor in this state, such person  
15 shall successfully pass an examination pursuant to the provisions of  
16 this section.

17        2. Examinations shall be held at such times, at such place and  
18 in such manner as the Oklahoma ~~Board of Licensed Alcohol and Drug~~  
19 ~~Counselors~~ Department of Mental Health and Substance Abuse Services  
20 directs. An examination shall be held at least annually. The ~~Board~~  
21 Department shall determine the acceptable grade on examinations.  
22 The examination shall cover such technical, professional and  
23 practical subjects as relate to the practice of alcohol and drug  
24 counseling.

1        3. If an applicant fails to pass the examination, the applicant  
2 may reapply.

3        B. The ~~Board~~ Department shall preserve the answers to any  
4 examination, and the applicant's performance on each section of the  
5 examination, as part of the records of the ~~Board~~ Department for a  
6 period of two (2) years following the date of the examination.

7        SECTION 6.        AMENDATORY        59 O.S. 2021, Section 1878, is  
8 amended to read as follows:

9        Section 1878. A. An applicant who meets the requirements for  
10 certification or licensure pursuant to the provisions of the  
11 Licensed Alcohol and Drug Counselors Act, pays the required  
12 certification or license fees, and otherwise complies with the  
13 provisions of the Licensed Alcohol and Drug Counselors Act shall be  
14 certified or licensed by the Oklahoma ~~Board of Licensed Alcohol and~~  
15 ~~Drug Counselors~~ Department of Mental Health and Substance Abuse  
16 Services.

17        B. Each initial certificate or license issued pursuant to the  
18 Licensed Alcohol and Drug Counselors Act shall expire twelve (12)  
19 months from the date of issuance unless sooner revoked.

20        C. 1. A certificate or license may be renewed annually upon  
21 application and payment of fees. The application for renewal shall  
22 be accompanied by evidence satisfactory to the ~~Board~~ Department that  
23 the applicant has satisfied relevant professional or continuing  
24 education requirements during the previous twelve (12) months.



1        2. Failure to renew a certificate or license shall result in  
2 forfeiture of the rights and privileges granted by the certificate  
3 or license.

4        D. A person whose certificate or license has expired may make  
5 application to the ~~Board~~ Department, in writing, within one (1) year  
6 following the expiration date of the certificate or license  
7 requesting reinstatement in a manner prescribed by the ~~Board~~  
8 Department and upon payment of the fees required by the provisions  
9 of the Licensed Alcohol and Drug Counselors Act. The certificate or  
10 license of a person whose certificate or license has been expired  
11 for more than one (1) year shall not be reinstated. A person may  
12 reapply for a new certificate or license as provided in Section 7  
13 1876 of this ~~act~~ title.

14        E. A certified or licensed alcohol and drug counselor whose  
15 certificate or license is current and in good standing and who  
16 wishes to retire the certificate or license may do so by informing  
17 the ~~Board~~ Department in writing and returning the certificate or  
18 license to the ~~Board~~ Department. A certificate or license so  
19 retired shall not be reinstated, but such retirement shall not  
20 prevent a person from applying for a new certificate or license at a  
21 future date.

22        SECTION 7.        AMENDATORY        59 O.S. 2021, Section 1879, is  
23 amended to read as follows:  
24

1       Section 1879. No person certified or licensed pursuant to the  
2 provisions of the Licensed Alcohol and Drug Counselors Act shall  
3 knowingly and willfully disclose any information that the holder of  
4 the certificate or license may have acquired from persons consulting  
5 the licensee in his or her professional capacity as an alcohol and  
6 drug counselor or be compelled to disclose such information except  
7 as provided by rules promulgated by the Oklahoma ~~Board of Licensed~~  
8 ~~Alcohol and Drug Counselors~~ Department of Mental Health and  
9 Substance Abuse Services. Such rules shall comply with state and  
10 federal law.

11       SECTION 8.       AMENDATORY       59 O.S. 2021, Section 1881, is  
12 amended to read as follows:

13       Section 1881. A. The Oklahoma ~~Board of Licensed Alcohol and~~  
14 ~~Drug Counselors~~ Department of Mental Health and Substance Abuse  
15 Services may deny, revoke, suspend, place on probation or otherwise  
16 sanction the holder of or candidate for any certificate or license  
17 issued pursuant to the provisions of the Licensed Alcohol and Drug  
18 Counselors Act to a certified or licensed alcohol and drug  
19 counselor, or withdraw its acceptance of a licensed or certified  
20 alcohol and drug counselor candidate if the person has:

21       1. Been convicted of or pleaded guilty or nolo contendere to a  
22 felony;  
23  
24

1        2. Been convicted of or pleaded guilty or nolo contendere to a  
2 misdemeanor determined to be of such a nature as to render the  
3 person convicted unfit to practice alcohol and drug counseling;

4        3. Been found by the ~~Board~~ Department to have a substance abuse  
5 or co-occurring disorder and not be in recovery or to have relapsed  
6 from recovery;

7        4. Engaged in fraud or deceit in connection with services  
8 rendered or in establishing needed qualifications pursuant to the  
9 provisions of the Licensed Alcohol and Drug counselors Act;

10       5. Knowingly aided or abetted a person not certified or  
11 licensed pursuant to these provisions in representing himself or  
12 herself as a certified or licensed alcohol and drug counselor in  
13 this state;

14       6. Engaged in unprofessional conduct as defined by rules  
15 promulgated by the ~~Board~~ Department;

16       7. Engaged in negligence or wrongful actions in the performance  
17 of his or her duties; or

18       8. Misrepresented any information required in obtaining a  
19 certificate or license.

20       B. No certificate or license shall be suspended or revoked, nor  
21 shall a certified or licensed alcohol and drug counselor be placed  
22 on probation or subjected to an administrative penalty until notice  
23 is served upon the certified or licensed alcohol and drug counselor  
24

1 and an opportunity for a hearing is provided in conformity with  
2 Article II of the Administrative Procedures Act.

3 C. In addition to the notice provided for in subsection B of  
4 this section, notice shall also be served on the ~~licensing board~~  
5 Department for any other license held by the certified or licensed  
6 alcohol and drug counselor.

7 D. 1. Any person who is determined by the ~~Board~~ Department to  
8 have violated any provision of the Licensed Alcohol and Drug  
9 Counselors Act, or any rule promulgated or order issued pursuant  
10 thereto, may be subject to an administrative penalty.

11 2. The maximum administrative penalty shall not exceed Ten  
12 Thousand Dollars (\$10,000.00).

13 3. Administrative penalties imposed pursuant to this subsection  
14 shall be enforceable in the district courts of this state.

15 4. All administrative penalties collected shall be deposited  
16 into the Licensed Alcohol and Drug Counselors Revolving Fund,  
17 created by Section 1883 of this title.

18 E. The hearings provided for by the Licensed Alcohol and Drug  
19 Counselors Act shall be conducted in conformity with, and records  
20 made thereof as provided by Article II of the Administrative  
21 Procedures Act.

22 SECTION 9. AMENDATORY 59 O.S. 2021, Section 1882, is  
23 amended to read as follows:  
24

1       Section 1882.   The Oklahoma ~~Board of Licensed Alcohol and Drug~~  
2 ~~Counselors~~ Department of Mental Health and Substance Abuse Services  
3 shall promulgate rules governing any certification or licensure  
4 action to be taken pursuant to the Administrative Procedures Act.

5       SECTION 10.       AMENDATORY       59 O.S. 2021, Section 1883, is  
6 amended to read as follows:

7       Section 1883.   There is hereby created in the State Treasury a  
8 revolving fund for the Oklahoma ~~Board of Licensed Alcohol and Drug~~  
9 ~~Counselors~~ Department of Mental Health and Substance Abuse Services,  
10 to be designated the "Licensed Alcohol and Drug Counselors Revolving  
11 Fund".   The fund shall be a continuing fund, not subject to fiscal  
12 year limitations, and shall consist of all monies received pursuant  
13 to the Licensed Alcohol and Drug Counselors Act.   All monies  
14 accruing to the credit of the fund are hereby appropriated and may  
15 be budgeted and expended by the ~~Board~~ Department to meet expenses  
16 necessary for carrying out the purposes of this act.   Expenditures  
17 from the fund shall be approved by the ~~Board~~ Department and shall be  
18 made upon warrants issued by the State Treasurer against claims  
19 filed as prescribed by law with the Director of the Office of  
20 Management and Enterprise Services for approval and payment.

21       SECTION 11.       AMENDATORY       59 O.S. 2021, Section 1884, is  
22 amended to read as follows:

23       Section 1884.   A.   The fee for certification, licensure or  
24 annual renewal of a certificate or license as a certified or

1 licensed alcohol and drug counselor, certification to provide  
2 treatment for co-occurring disorders, approval as a supervisor or  
3 for other actions reasonable and necessary to the proper  
4 administration of the provisions of the Licensed Alcohol and Drug  
5 Counselors Act shall be fixed by the Oklahoma ~~Board of Licensed~~  
6 ~~Alcohol and Drug Counselors~~ Department of Mental Health and  
7 Substance Abuse Services.

8 B. The ~~Board~~ Department shall fix the amount of the fees so  
9 that the total fees collected will be sufficient to meet the  
10 expenses of administering the provisions of the Licensed Alcohol and  
11 Drug Counselors Act and so that there are no unnecessary surpluses  
12 in the Licensed Alcohol and Drug Counselors Revolving Fund;  
13 provided, the ~~Board~~ Department shall not fix the certification or  
14 licensure fee at an amount in excess of Three Hundred Dollars  
15 (\$300.00), or the annual renewal fee at an amount in excess of Two  
16 Hundred Dollars (\$200.00).

17 C. 1. The fee for the issuance of a certificate or license to  
18 replace a lost, destroyed or mutilated certificate or license shall  
19 be Twenty-five Dollars (\$25.00).

20 2. The fee shall accompany the application for a replacement  
21 license.

22 D. The fee for the application and examination required  
23 pursuant to the provisions of the Licensed Alcohol and Drug  
24 Counselors Act shall not exceed Five Hundred Dollars (\$500.00).

SECTION 12. AMENDATORY 59 O.S. 2021, Section 1902, is amended to read as follows:

Section 1902. For the purpose of the Licensed Professional Counselors Act:

1. "Licensed professional counselor" or "LPC" means any person who offers professional counseling services for compensation to any person and is licensed pursuant to the provisions of the Licensed Professional Counselors Act. The term shall not include those professions exempted by Section 1903 of this title;

2. ~~"Board" means the State Board of Behavioral Health Licensure~~  
"Commissioner" means the Commissioner of the Oklahoma Department of Mental Health and Substance Abuse Services;

3. "Counseling" means the application of mental health and developmental principles in order to:

- a. facilitate human development and adjustment throughout the life span,
- b. prevent, diagnose or treat mental, emotional or behavioral disorders or associated distress which interfere with mental health,
- c. conduct assessments or diagnoses for the purpose of establishing treatment goals and objectives, and
- d. plan, implement or evaluate treatment plans using counseling treatment interventions;

1       4. "Counseling treatment interventions" means the application  
2 of cognitive, affective, behavioral and systemic counseling  
3 strategies which include principles of development, wellness, and  
4 pathology that reflect a pluralistic society. Such interventions  
5 are specifically implemented in the context of a professional  
6 counseling relationship;

7       5. "Consulting" means interpreting or reporting scientific fact  
8 or theory in counseling to provide assistance in solving current or  
9 potential problems of individuals, groups or organizations;

10       6. "Department" means the Oklahoma Department of Mental Health  
11 and Substance Abuse Services;

12       ~~6.~~ 7. "Referral activities" means the evaluating of data to  
13 identify problems and to determine the advisability of referral to  
14 other specialists;

15       ~~7.~~ 8. "Research activities" means reporting, designing,  
16 conducting or consulting on research in counseling;

17       ~~8.~~ 9. "Specialty" means the designation of a subarea of  
18 counseling practice that is recognized by a national certification  
19 agency or by the ~~Board~~ Department;

20       ~~9.~~ 10. "Supervisor" means a person who meets the requirements  
21 established by the ~~Board~~ Department and who is licensed pursuant to  
22 the Licensed Professional Counselors Act; and

23       ~~10.~~ 11. "Licensed professional counselor candidate" means a  
24 person whose application for licensure has been accepted and who is



1 under supervision for licensure as provided in Section 1906 of this  
2 title; and

3 ~~11. "Executive Director" means the Executive Director of the~~  
4 ~~State Board of Behavioral Health Licensure.~~

5 SECTION 13. AMENDATORY 59 O.S. 2021, Section 1905, is  
6 amended to read as follows:

7 Section 1905. A. ~~The State Board of Behavioral Health~~  
8 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
9 Services shall:

10 1. Prescribe, adopt and promulgate rules to implement and  
11 enforce the provisions of the Licensed Professional Counselors Act,  
12 including the adoption of the State Department of Health rules by  
13 reference;

14 2. Adopt and establish rules of professional conduct;

15 3. Set license and examination fees as required by the Licensed  
16 Professional Counselors Act; and

17 4. Promulgate rules for licensed professional counselors who  
18 are licensed outside of Oklahoma to provide counseling services  
19 approved by the Licensed Professional Counselors Act, the Marital  
20 and Family Therapist Licensure Act, and the Licensed Behavioral  
21 Practitioner Act. Provided, such rules shall only be valid for the  
22 duration of a declaration of emergency issued by the Governor or the  
23 Legislature pursuant to the Oklahoma Emergency Management Act of  
24 2003 or a declaration of a catastrophic health emergency issued by

1 the Governor pursuant to the Catastrophic Health Emergency Powers  
2 Act. Provided, such rules shall only authorize the provision of  
3 services that are pro bono or reimbursed by nongovernmental  
4 entities. Nothing in this section shall be construed as to permit  
5 the adoption of permanent rules weakening the licensing requirements  
6 established by the Licensed Professional Counselors Act, the Marital  
7 and Family Therapist Licensure Act, and the Licensed Behavioral  
8 Practitioner Act.

9 B. The ~~Board~~ Department shall have the authority to:

10 1. Seek injunctive relief;

11 2. Request the district attorney to bring an action to enforce  
12 the provisions of the Licensed Professional Counselors Act;

13 3. Receive fees and deposit said fees into the Licensed  
14 Professional Counselors Revolving Fund as required by the Licensed  
15 Professional Counselors Act;

16 4. Issue, renew, revoke, deny, suspend and place on probation  
17 licenses to practice professional counseling pursuant to the  
18 provisions of the Licensed Professional Counselors Act;

19 5. Examine all qualified applicants for licenses to practice  
20 professional counseling;

21 6. Request assistance from the State Board of Medical Licensure  
22 and Supervision for the purposes of investigating complaints and  
23 possible violations of the Licensed Professional Counselors Act;

1        7. Accept grants and gifts from various foundations and  
2 institutions; and

3        8. Make such expenditures and employ such personnel as the  
4 Executive Director may deem necessary for the administration of the  
5 Licensed Professional Counselors Act.

6        SECTION 14.        AMENDATORY        59 O.S. 2021, Section 1906, is  
7 amended to read as follows:

8        Section 1906. A. Applications for a license to practice as a  
9 licensed professional counselor shall be made to the ~~State Board of~~  
10 ~~Behavioral Health Licensure~~ Oklahoma Department of Mental Health and  
11 Substance Abuse Services in writing. Such applications shall be on  
12 a form and in a manner prescribed by the ~~Board~~ Department. The  
13 application shall be accompanied by the fee required by the Licensed  
14 Professional Counselors Act, which shall be retained by the ~~Board~~  
15 Department and not returned to the applicant.

16        B. Each applicant for a license to practice as a licensed  
17 professional counselor shall:

18        1. Pass an examination based on standards promulgated by the  
19 ~~Board~~ Department pursuant to the Licensed Professional Counselors  
20 Act;

21        2. Be at least twenty-one (21) years of age;

22        3. Not have engaged in, nor be engaged in, any practice or  
23 conduct which would be grounds for denying, revoking or suspending a  
24 license pursuant to this title; and

1        4. Otherwise comply with the rules promulgated by the ~~Board~~  
2 Department pursuant to the provisions of the Licensed Professional  
3 Counselors Act.

4        C. In addition to the qualifications specified by the  
5 provisions of subsection B of this section, an applicant for a  
6 license to practice as a licensed professional counselor shall have:

7        1. Successfully completed at least sixty (60) graduate semester  
8 hours (ninety (90) graduate quarter hours) of counseling-related  
9 course work. These sixty (60) hours shall include at least a  
10 master's degree in a counseling field. All courses and degrees  
11 shall be earned from a regionally accredited college or university.  
12 The ~~Board~~ Department shall define what course work qualifies as  
13 "counseling-related" and what degrees/majors qualify as a  
14 "counseling field"; and

15        2. Three (3) years of supervised full-time experience in  
16 professional counseling subject to the supervision of a licensed  
17 professional counselor pursuant to conditions established by the  
18 ~~Board~~ Department. One (1) or two (2) years of experience may be  
19 gained at the rate of one (1) year for each thirty (30) graduate  
20 semester hours earned beyond the master's degree, provided that such  
21 hours are clearly related to the field of counseling and are  
22 acceptable to the ~~Board~~ Department. The applicant shall have no  
23 less than one (1) year of supervised full-time experience in  
24 counseling.

1 D. Applicants with degrees from schools outside the United  
2 States may qualify with ~~Board~~ Department approval by providing the  
3 ~~Board~~ Department with an acceptable comprehensive evaluation of the  
4 degree performed by a foreign credential evaluation service that is  
5 acceptable to the ~~Board~~ Department, and any other requirement the  
6 ~~Board~~ Department deems necessary.

7 E. Applicants licensed in other states shall be licensed by the  
8 ~~Board~~ Department if the candidate is in good standing in the other  
9 state, has maintained a minimum of three (3) years of licensure  
10 since the time of initial full licensure post-provisional term and  
11 submits proof of licensure in the other state.

12 SECTION 15. AMENDATORY 59 O.S. 2021, Section 1907, is  
13 amended to read as follows:

14 Section 1907. A. 1. Examinations shall be held at such times,  
15 at such place and in such manner as the ~~State Board of Behavioral~~  
16 ~~Health Licensure~~ Oklahoma Department of Mental Health and Substance  
17 Abuse Services directs. An examination shall be held at least  
18 annually. The ~~Board~~ Department shall determine the acceptable grade  
19 on examinations. The examination shall cover such technical,  
20 professional and practical subjects as relate to the practice of  
21 professional counseling.

22 2. If an applicant fails to pass the examinations, the  
23 applicant may reapply.  
24

1 B. The ~~Board~~ Department shall preserve answers to any  
2 examination, and the applicant's performance on each section, as  
3 part of the records of the ~~Board~~ Department for a period of two (2)  
4 years following the date of the examination.

5 SECTION 16. AMENDATORY 59 O.S. 2021, Section 1908, is  
6 amended to read as follows:

7 Section 1908. A. An applicant who meets the requirements for  
8 licensure pursuant to the provisions of the Licensed Professional  
9 Counselors Act, has paid the required license fees and has otherwise  
10 complied with the provisions of the Licensed Professional Counselors  
11 Act shall be licensed by the ~~State Board of Behavioral Health~~  
12 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
13 Services.

14 B. Each initial license issued pursuant to the Licensed  
15 Professional Counselors Act shall expire twenty-four (24) months  
16 from the date of issuance unless revoked. A license may be renewed  
17 annually upon application and payment of fees. The application for  
18 renewal shall be accompanied by evidence satisfactory to the ~~Board~~  
19 Department that the applicant has completed relevant professional or  
20 continued educational experience during the previous twenty-four  
21 (24) months. Failure to renew a license shall result in forfeiture  
22 of the rights and privileges granted by the license. A person whose  
23 license has expired may make application within one (1) year  
24 following the expiration in writing to the ~~Board~~ Department

1 requesting reinstatement in a manner prescribed by the ~~Board~~  
2 Department and payment of the fees required by the provisions of the  
3 Licensed Professional Counselors Act. The license of a person whose  
4 license has expired for more than one (1) year shall not be  
5 reinstated. A person may reapply for a new license as provided in  
6 Section 1906 of this title.

7 C. A licensed professional counselor whose license is current  
8 and in good standing, who wishes to retire the license, may do so by  
9 informing the ~~Board~~ Department in writing and returning the license  
10 to the Office of Licensed Professional Counselors. A license so  
11 retired shall not be reinstated but does not prevent a person from  
12 applying for a new license at a future date.

13 SECTION 17. AMENDATORY 59 O.S. 2021, Section 1909, is  
14 amended to read as follows:

15 Section 1909. ~~The State Board of Behavioral Health Licensure~~  
16 Oklahoma Department of Mental Health and Substance Abuse Services  
17 shall have the power to issue a license by endorsement to an  
18 applicant licensed in another state to practice as a licensed  
19 professional counselor if the ~~Board~~ Department deems such applicant  
20 to have qualifications comparable to those required under the  
21 Licensed Professional Counselors Act and if the ~~Board~~ Department  
22 finds the applicant meets the standards, provided by rules, for  
23 license by endorsement.

1       SECTION 18.       AMENDATORY       59 O.S. 2021, Section 1911, is  
2 amended to read as follows:

3       Section 1911. A. Any person who:

4       1. Represents himself or herself by the title "Licensed  
5 Professional Counselor" or "LPC" without having first complied with  
6 the provisions of the Licensed Professional Counselors Act;

7       2. Otherwise offers to perform counseling services;

8       3. Uses the title of Licensed Professional Counselor or any  
9 other name, style or description denoting that the person is  
10 licensed as a licensed professional counselor; or

11       4. Practices counseling,  
12 upon conviction thereof, shall be guilty of a misdemeanor and shall  
13 be punished by imposition of a fine of not less than One Hundred  
14 Dollars (\$100.00) nor more than Five Hundred Dollars (\$500.00) for  
15 each offense and in addition may be imprisoned for a term not to  
16 exceed six (6) months in the county jail or by both such fine and  
17 imprisonment.

18       B. It shall be unlawful for any person who is not licensed or  
19 supervised pursuant to or specifically exempt from the provisions of  
20 the Licensed Professional Counselors Act to:

21       1. Advertise or otherwise offer to perform counseling services;

22       2. Use the title of Licensed Professional Counselor or any  
23 other name, style or description denoting that the person is  
24 licensed as a licensed professional counselor; or



1        3. Practice counseling.

2        Such action shall be subject to injunctive action by the ~~State Board~~  
3 ~~of Behavioral Health Licensure~~ Oklahoma Department of Mental Health  
4 and Substance Abuse Services.

5        SECTION 19.        AMENDATORY        59 O.S. 2021, Section 1912, is  
6 amended to read as follows:

7        Section 1912. A. The ~~State Board of Behavioral Health~~  
8 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
9 Services may deny, revoke, suspend or place on probation any license  
10 or specialty designation issued pursuant to the provisions of the  
11 Licensed Professional Counselors Act to a licensed professional  
12 counselor, if the person has:

13        1. Been convicted of a felony crime that substantially relates  
14 to the practice of counseling and poses a reasonable threat to  
15 public safety;

16        2. Engaged in fraud or deceit in connection with services  
17 rendered or in establishing needed qualifications pursuant to the  
18 provisions of this act;

19        3. Knowingly aided or abetted a person not licensed pursuant to  
20 these provisions in representing himself as a licensed professional  
21 counselor in this state;

22        4. Engaged in unprofessional conduct as defined by the rules  
23 established by the ~~Board~~ Department;

1        5. Engaged in negligence or wrongful actions in the performance  
2 of his or her duties; or

3        6. Misrepresented any information required in obtaining a  
4 license.

5        B. If the ~~Board~~ Department determines that a felony conviction  
6 of an applicant renders the convicted applicant unfit to practice  
7 counseling, the ~~Board~~ Department shall provide notice and  
8 opportunity to the applicant, by certified mail at the last-known  
9 address, for an administrative hearing to contest such determination  
10 before the ~~Board~~ Department may deny the application. The request  
11 shall be made by the applicant within fifteen (15) days of receipt  
12 of the notice.

13        C. No license or specialty designation shall be suspended or  
14 revoked, nor a licensed professional counselor placed on probation  
15 until notice is served upon the licensed professional counselor and  
16 a hearing is held in conformity with Article II of the  
17 Administrative Procedures Act.

18        D. As used in this section:

19        1. "Substantially relates" means the nature of criminal conduct  
20 for which the person was convicted has a direct bearing on the  
21 fitness or ability to perform one or more of the duties or  
22 responsibilities necessarily related to the occupation; and

23        2. "Poses a reasonable threat" means the nature of criminal  
24 conduct for which the person was convicted involved an act or threat

1 of harm against another and has a bearing on the fitness or ability  
2 to serve the public or work with others in the occupation.

3 SECTION 20. AMENDATORY 59 O.S. 2021, Section 1913.1, is  
4 amended to read as follows:

5 Section 1913.1. A. ~~The State Board of Behavioral Health~~  
6 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
7 Services shall promulgate rules governing any licensure action to be  
8 taken pursuant to the Licensed Professional Counselors Act which  
9 shall be consistent with the requirements of notice and hearing  
10 under the Administrative Procedures Act. No action shall be taken  
11 without prior notice unless the ~~Board~~ Department determines that  
12 there exists a threat to the health and safety of the residents of  
13 Oklahoma.

14 B. 1. Any person who is determined by the ~~Board~~ Department to  
15 have violated any provision of the Licensed Professional Counselors  
16 Act, or any rule promulgated or order issued pursuant thereto, may  
17 be subject to an administrative penalty.

18 2. The maximum administrative penalty shall not exceed Ten  
19 Thousand Dollars (\$10,000.00).

20 3. Administrative penalties imposed pursuant to this subsection  
21 shall be enforceable in the district courts of this state.

22 4. All administrative penalties collected shall be deposited  
23 into the Licensed Professional Counselors Revolving Fund.  
24

1       SECTION 21.       AMENDATORY       59 O.S. 2021, Section 1916.1, is  
2 amended to read as follows:

3       Section 1916.1. All licensed professional counselors, except  
4 those employed by federal, state, or local governmental agencies,  
5 shall, prior to the performance of service, furnish the client with  
6 a copy of the Statement of Professional Disclosure as promulgated by  
7 rule of the ~~State Board of Behavioral Health Licensure~~ Oklahoma  
8 Department of Mental Health and Substance Abuse Services. A current  
9 copy shall be on file with the ~~Board~~ Department at all times.

10       SECTION 22.       AMENDATORY       59 O.S. 2021, Section 1917, is  
11 amended to read as follows:

12       Section 1917. A. A professional specialty designation area may  
13 be established by the ~~State Board of Behavioral Health Licensure~~  
14 Oklahoma Department of Mental Health and Substance Abuse Services  
15 upon receipt of a petition signed by fifteen qualified persons who  
16 are currently licensed as licensed professional counselors, and who  
17 meet the recognized minimum standards as established by appropriate  
18 nationally recognized certification agencies; provided, if a  
19 nationally recognized certification does not exist, the ~~Board~~  
20 Department may establish minimum standards for specialty  
21 designations.

22       B. Upon receipt of credentials from the appropriate  
23 certification agency, the ~~Board~~ Department may grant the licensed  
24 professional counselor the appropriate specialty designation. The

1 licensed professional counselor may attain specialty designation  
2 through examination. A licensed professional counselor shall not  
3 claim or advertise a counseling specialty and shall not incorporate  
4 the specialty designation into the professional title of such  
5 licensed professional counselor, unless the qualifications and  
6 certification requirements of that specialty have been met and have  
7 been approved by the ~~Board~~ Department and the appropriate  
8 certification agency.

9 SECTION 23. AMENDATORY 59 O.S. 2021, Section 1918, is  
10 amended to read as follows:

11 Section 1918. There is hereby created in the State Treasury a  
12 revolving fund for the ~~State Board of Behavioral Health Licensure~~  
13 Oklahoma Department of Mental Health and Substance Abuse Services,  
14 to be designated the "Licensed Professional Counselors Revolving  
15 Fund". The fund shall be a continuing fund, not subject to fiscal  
16 year limitations, and shall consist of all monies received pursuant  
17 to this act. All monies accruing to the credit of said fund are  
18 hereby appropriated and may be budgeted and expended by the  
19 ~~Executive Director~~ Commissioner to meet expenses necessary for  
20 carrying out the purpose of the Licensed Professional Counselors  
21 Act. Expenditures from said fund shall be approved by the ~~Board~~  
22 Department and shall be made upon warrants issued by the State  
23 Treasurer against claims filed as prescribed by law with the  
24

1 Director of the Office of Management and Enterprise Services for  
2 approval and payment.

3 SECTION 24. AMENDATORY 59 O.S. 2021, Section 1919, is  
4 amended to read as follows:

5 Section 1919. A. The licensing fee and the annual renewal fee  
6 shall be amounts fixed by the ~~State Board of Behavioral Health~~  
7 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
8 Services upon recommendations of the Oklahoma Licensed Professional  
9 Counselors Advisory Board.

10 B. The ~~Board~~ Department shall fix the amount of the fees so  
11 that the total fees collected will be sufficient to meet the  
12 expenses of administering the provisions of the Licensed  
13 Professional Counselors Act and so that there are no unnecessary  
14 surpluses in the Licensed Professional Counselors Revolving Fund.

15 C. The ~~Board~~ Department shall not fix a license fee at an  
16 amount in excess of Three Hundred Dollars (\$300.00) and a renewal  
17 fee at an amount in excess of Two Hundred Dollars (\$200.00).

18 D. 1. The fee for the issuance of a license to replace a  
19 license which was lost, destroyed or mutilated shall be Twenty-five  
20 Dollars (\$25.00).

21 2. The fee shall accompany the application for a replacement  
22 license.

23 3. The fee for specialty designation shall not exceed One  
24 Hundred Fifty Dollars (\$150.00).

1        4. The fee for an examination required pursuant to the Licensed  
2 Professional Counselors Act shall not exceed the ~~Board's~~  
3 Department's actual costs for holding and grading the examination.

4        SECTION 25.        AMENDATORY        59 O.S. 2021, Section 1925.2, is  
5 amended to read as follows:

6        Section 1925.2. For purposes of the Marital and Family  
7 Therapist Licensure Act:

8        1. "Advertise" means, but is not limited to, the issuing or  
9 causing to be distributed any card, sign, or device to any person;  
10 or the causing, permitting or allowing any sign or marking on or in  
11 any building or structure, or in any newspaper or magazine or in any  
12 directory, or on radio or television, or by advertising by any other  
13 means designed to secure public attention;

14        2. ~~"Board" means the State Board of Behavioral Health Licensure~~  
15 "Commissioner" means the Commissioner of the Oklahoma Department of  
16 Mental Health and Substance Abuse Services;

17        3. "Department" means the Oklahoma Department of Mental Health  
18 and Substance Abuse Services;

19        4. "Licensed marital and family therapist" means a person  
20 holding a current license issued pursuant to the provisions of the  
21 Marital and Family Therapist Licensure Act;

22        ~~4.~~ 5. "Marital and family therapy" means the assessment,  
23 diagnosis and treatment of disorders, whether cognitive, affective,  
24 or behavioral, within the context of marital and family systems.

1 Marital and family therapy involves the professional application of  
2 family systems theories and techniques in the delivery of services  
3 to individuals, marital pairs, and families for the purpose of  
4 treating such disorders;

5 ~~5.~~ 6. "Person" means any individual, firm, corporation,  
6 partnership, organization or body politic;

7 ~~6.~~ 7. "Practice of marital and family therapy" means the  
8 rendering of professional marital and family therapy services to  
9 individuals, family groups and marital pairs, singly or in groups,  
10 whether such services are offered directly to the general public or  
11 through organizations either public or private, for a fee, monetary  
12 or otherwise;

13 ~~7.~~ 8. "Recognized educational institution" means a regionally  
14 accredited college or university recognized by the United States  
15 Department of Education;

16 ~~8.~~ 9. "Use a title or description of" means to hold oneself out  
17 to the public as having a particular status by means of stating on  
18 signs, mailboxes, address plates, stationery, announcements, calling  
19 cards or other instruments of professional identification; and

20 ~~9.~~ 10. "Licensed marital and family therapist candidate" means  
21 a person whose application for licensure has been accepted and who  
22 is under supervision for licensure as set forth in Section 1925.6 of  
23 this title; ~~and~~

24



1       ~~10. "Executive Director" means the Executive Director of the~~  
2       ~~State Board of Behavioral Health Licensure.~~

3       SECTION 26.       AMENDATORY       59 O.S. 2021, Section 1925.5, is  
4       amended to read as follows:

5       Section 1925.5. A. The ~~State Board of Behavioral Health~~  
6       ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
7       Services shall:

8       1. Prescribe, adopt and promulgate rules to implement and  
9       enforce the provisions of the Marital and Family Therapist Licensure  
10      Act;

11      2. Set license and examination fees as required by the Marital  
12      and Family Therapist Licensure Act, including the adoption of the  
13      State Department of Health rules by reference; and

14      3. Adopt and establish rules of professional conduct.

15      B. The ~~Board~~ Department shall have the authority to:

16      1. Seek injunctive relief;

17      2. Receive fees and deposit said fees into the Licensed Marital  
18      and Family Therapist Revolving Fund as required by the Marital and  
19      Family Therapist Licensure Act;

20      3. Issue, renew, revoke, deny, suspend and place on probation  
21      licenses to practice marital and family therapy pursuant to the  
22      provisions of the Marital and Family Therapist Licensure Act;

23      4. Examine all qualified applicants for licenses to practice  
24      marital and family therapy;

1        5. Accept grants and gifts from various foundations and  
2 institutions;

3        6. Make such expenditures and employ such personnel as the  
4 Commissioner may deem necessary for the administration of the  
5 Marital and Family Therapist Licensure Act;

6        7. Request the district attorney to bring an action to enforce  
7 the provisions of the Marital and Family Therapist Licensure Act;  
8 and

9        8. Request assistance from the State Board of Medical Licensure  
10 and Supervision for the purposes of investigating complaints and  
11 possible violations of the Marital and Family Therapist Licensure  
12 Act.

13        SECTION 27.        AMENDATORY        59 O.S. 2021, Section 1925.6, is  
14 amended to read as follows:

15        Section 1925.6. A. Applications for a license to practice as a  
16 licensed marital and family therapist shall be made to the ~~State~~  
17 ~~Board of Behavioral Health Licensure~~ Oklahoma Department of Mental  
18 Health and Substance Abuse Services in writing. Such applications  
19 shall be on a form and in a manner prescribed by the ~~Board~~  
20 Department. The application shall be accompanied by the fee  
21 required by Section 1925.18 of this title which shall be retained by  
22 the ~~Board~~ Department and not returned to the applicant.

23        B. Each applicant for a license to practice as a licensed  
24 marital and family therapist shall:

1        1. Be at least twenty-one (21) years of age;

2        2. Not have engaged in, nor be engaged in, any practice or  
3 conduct which would be a grounds for revoking, suspending or placing  
4 on probation a license under Section 1925.15 of this title; and

5        3. Otherwise comply with the rules and regulations promulgated  
6 by the ~~Board~~ Department pursuant to the provisions of the Marital  
7 and Family Therapist Licensure Act.

8        C. In addition to the qualifications specified by the  
9 provisions of subsection B of this section any person applying for a  
10 license after September 1, 1991, to practice as a licensed marital  
11 and family therapist shall have the following educational and  
12 experience qualifications:

13        1. A master's degree or a doctoral degree in marital and family  
14 therapy, or a content-equivalent degree as defined by the ~~Board~~  
15 Department;

16        2. Successful completion of two (2) calendar years of work  
17 experience in marital and family therapy following receipt of a  
18 qualifying degree, under supervision in accordance with standards  
19 established by the ~~Board~~ Department; and

20        3. An applicant applying for a license after September 1, 1991,  
21 shall also be required to pass a written or oral examination or both  
22 written and oral examination administered by the ~~Board~~ Department  
23 if, at the discretion of the ~~Board~~ Department, such examination is  
24

1 deemed necessary in order to determine the applicant's  
2 qualifications for the practice of marital and family therapy.

3 SECTION 28. AMENDATORY 59 O.S. 2021, Section 1925.7, is  
4 amended to read as follows:

5 Section 1925.7. A. Examinations shall be held at such times,  
6 at such place and in such manner as the ~~State Board of Behavioral~~  
7 ~~Health Licensure~~ Oklahoma Department of Mental Health and Substance  
8 Abuse Services directs. An examination shall be held at least  
9 annually. Examinations may be written or oral or both written and  
10 oral. In any written examination each applicant shall be designated  
11 so that such applicant's name shall not be disclosed to the ~~Board~~  
12 Department until the examinations have been graded. Examinations  
13 shall include questions in such theoretical and applied fields as  
14 the ~~Board~~ Department deems most suitable to test an applicant's  
15 knowledge and competence to engage in the practice of marital and  
16 family therapy.

17 B. The ~~Board~~ Department shall determine the acceptable grade on  
18 examinations. If an applicant fails to pass the examinations, the  
19 applicant may reapply.

20 C. The ~~Board~~ Department shall preserve answers to any  
21 examination, and the applicant's performance on each section, as  
22 part of the records of the ~~Board~~ Department for a period of two (2)  
23 years following the date of the examination.

1       SECTION 29.       AMENDATORY       59 O.S. 2021, Section 1925.8, is  
2 amended to read as follows:

3       Section 1925.8. A. An applicant who meets the requirements for  
4 licensure required by the provisions of the Marital and Family  
5 Therapist Licensure Act, has paid the required license fees and has  
6 otherwise complied with the provisions of the Marital and Family  
7 Therapist Licensure Act, shall be licensed by the ~~State Board of~~  
8 ~~Behavioral Health Licensure~~ Oklahoma Department of Mental Health and  
9 Substance Abuse Services.

10       B. Each initial license issued pursuant to the Marital and  
11 Family Therapist Licensure Act shall expire twenty-four (24) months  
12 from the date of issuance. A license may be renewed annually upon  
13 application and payment of fees. Failure to timely renew a license  
14 shall result in expiration of the license and forfeiture of the  
15 rights and privileges granted by the license. A person whose  
16 license has expired may within one (1) year following the expiration  
17 request reinstatement in a manner prescribed by the ~~Board~~  
18 Department. The license of a person whose license has expired  
19 pursuant to this section for more than one (1) year shall not be  
20 reinstated.

21       SECTION 30.       AMENDATORY       59 O.S. 2021, Section 1925.9, is  
22 amended to read as follows:

23       Section 1925.9. The ~~State Board of Behavioral Health Licensure~~  
24 Oklahoma Department of Mental Health and Substance Abuse Services

1 shall have the power to issue, upon application and payment of fees,  
2 a license by endorsement for an applicant licensed in another state  
3 to practice as a licensed marital and family therapist if the ~~Board~~  
4 Department deems such applicant to have qualifications equivalent to  
5 or which exceed those required pursuant to the provisions of the  
6 Marital and Family Therapist Licensure Act and if the ~~Board~~  
7 Department finds the applicant meets the standards, provided by  
8 rule, for license by endorsement.

9 SECTION 31. AMENDATORY 59 O.S. 2021, Section 1925.15, is  
10 amended to read as follows:

11 Section 1925.15. A. The ~~State Board of Behavioral Health~~  
12 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
13 Services may deny, revoke, suspend or place on probation any license  
14 issued subject to the provisions of the Marital and Family Therapist  
15 Licensure Act, if the person has:

16 1. Been convicted of a felony crime that substantially relates  
17 to the practice of counseling and poses a reasonable threat to  
18 public safety;

19 2. Violated ethical standards of such a nature as to render the  
20 person found by the ~~Board~~ Department to have engaged in such  
21 violation unfit to practice marital and family therapy;

22 3. Misrepresented any information required in obtaining a  
23 license;

1        4. Engaged in fraud or deceit in connection with services  
2 rendered or in establishing needed qualifications pursuant to the  
3 provisions of the Marital and Family Therapist Licensure Act;

4        5. Knowingly aided or abetted a person not licensed pursuant to  
5 these provisions in representing himself or herself as a licensed  
6 marital and family therapist in this state;

7        6. Engaged in unprofessional conduct as defined by the rules  
8 promulgated by the ~~Board~~ Department; or

9        7. Engaged in negligence or wrongful actions in the performance  
10 of the duties of such person.

11        B. If the ~~Board~~ Department determines that a felony conviction  
12 of an applicant renders the convicted applicant unfit to practice  
13 counseling, the ~~Board~~ Department shall provide notice and  
14 opportunity to the applicant, by certified mail at the last-known  
15 address, for an administrative hearing to contest such determination  
16 before the ~~Board~~ Department may deny the application. The request  
17 shall be made by the applicant within fifteen (15) days of receipt  
18 of the notice.

19        C. No license shall be suspended, revoked or placed on  
20 probation until notice is served upon the licensed marital and  
21 family therapist and a hearing is held in such manner as is required  
22 by the Marital and Family Therapist Licensure Act.

23        D. Any person who is determined by the ~~Board~~ Department to have  
24 violated any of the provisions of the Marital and Family Therapist

1 Licensure Act or any rule promulgated or order issued pursuant  
2 thereto may be subject to an administrative penalty. The maximum  
3 fine shall not exceed Ten Thousand Dollars (\$10,000.00). All  
4 administrative penalties collected pursuant to the Marital and  
5 Family Therapist Licensure Act shall be deposited into the Licensed  
6 Marital and Family Therapist Revolving Fund. Administrative  
7 penalties imposed pursuant to this subsection shall be enforceable  
8 in the district courts of this state.

9 E. As used in this section:

10 1. "Substantially relates" means the nature of criminal conduct  
11 for which the person was convicted has a direct bearing on the  
12 fitness or ability to perform one or more of the duties or  
13 responsibilities necessarily related to the occupation; and

14 2. "Poses a reasonable threat" means the nature of criminal  
15 conduct for which the person was convicted involved an act or threat  
16 of harm against another and has a bearing on the fitness or ability  
17 to serve the public or work with others in the occupation.

18 SECTION 32. AMENDATORY 59 O.S. 2021, Section 1925.17, is  
19 amended to read as follows:

20 Section 1925.17. There is hereby created in the State Treasury  
21 a revolving fund for the ~~State Board of Behavioral Health Licensure~~  
22 Oklahoma Department of Mental Health and Substance Abuse Services,  
23 to be designated the "Licensed Marital and Family Therapist  
24 Revolving Fund". The fund shall be a continuing fund, not subject



1 to fiscal year limitations, and shall consist of all monies received  
2 pursuant to the provisions of the Marital and Family Therapist  
3 Licensure Act. All monies accruing to the credit of said fund are  
4 hereby appropriated and may be budgeted and expended by the  
5 ~~Executive Director~~ Commissioner to meet expenses necessary for  
6 carrying out the purpose of the Marital and Family Therapist  
7 Licensure Act. Expenditures from said fund shall be approved by the  
8 ~~Board~~ Department and shall be made upon warrants issued by the State  
9 Treasurer against claims filed as prescribed by law with the  
10 Director of the Office of Management and Enterprise Services for  
11 approval and payment.

12 SECTION 33. AMENDATORY 59 O.S. 2021, Section 1925.18, is  
13 amended to read as follows:

14 Section 1925.18. A. The licensing fee and the annual renewal  
15 fee shall be amounts fixed by the ~~State Board of Behavioral Health~~  
16 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
17 Services.

18 B. 1. The ~~Board~~ Department shall fix the amount of the fees so  
19 that the total fees collected will be sufficient to meet the  
20 expenses of administering the provisions of the Marital and Family  
21 Therapist Licensure Act and so that there are no unnecessary  
22 surpluses in the Licensed Marital and Family Therapist Revolving  
23 Fund.  
24

1        2. The ~~Board~~ Department shall not fix a license fee at an  
2 amount in excess of Three Hundred Dollars (\$300.00) and a renewal  
3 fee at an amount in excess of Two Hundred Dollars (\$200.00).

4        3. The fee for the issuance of a license to replace a license  
5 which was lost, destroyed or mutilated shall be Twenty-five Dollars  
6 (\$25.00).

7        4. The fee shall accompany the application for a replacement  
8 license.

9        5. The fee for an examination required pursuant to the Marital  
10 and Family Therapist Licensure Act shall not exceed the actual costs  
11 incurred by the ~~Board~~ Department for holding and grading the  
12 examinations.

13        SECTION 34.        AMENDATORY        59 O.S. 2021, Section 1931, is  
14 amended to read as follows:

15        Section 1931. For the purpose of the Licensed Behavioral  
16 Practitioner Act:

17        1. "Behavioral health services" means the application of the  
18 scientific components of psychological and mental health principles  
19 in order to:

- 20            a. facilitate human development and adjustment throughout  
21                the life span,  
22            b. prevent, diagnose, or treat mental, emotional, or  
23                behavioral disorders or associated distress which  
24                interfere with mental health,

- 1 c. conduct assessments or diagnoses for the purpose of  
2 establishing treatment goals and objectives, and  
3 d. plan, implement, or evaluate treatment plans using  
4 behavioral treatment interventions;

5 2. "Behavioral treatment interventions" means the application  
6 of empirically validated treatment modalities, including, but not  
7 limited to, operant and classical conditioning techniques,  
8 adherence/compliance methods, habit reversal procedures, cognitive  
9 behavior therapy, biofeedback procedures and parent training. Such  
10 interventions are specifically implemented in the context of a  
11 professional therapeutic relationship;

12 3. ~~"Board" means the State Board of Behavioral Health Licensure~~  
13 "Commissioner" means the Commissioner of the Oklahoma Department of  
14 Mental Health and Substance Abuse Services;

15 4. "Consulting" means interpreting or reporting scientific fact  
16 or theory in behavioral health to provide assistance in solving  
17 current or potential problems of individuals, groups, or  
18 organizations;

19 5. "Department" means the Oklahoma Department of Mental Health  
20 and Substance Abuse Services;

21 ~~5.~~ 6. "Licensed behavioral practitioner" or "LBP" means any  
22 person who offers professional behavioral health services to any  
23 person and is licensed pursuant to the provisions of the Licensed  
24

Behavioral Practitioner Act. The term shall not include those professions exempted by Section 1932 of this title;

~~6.~~ 7. "Licensed behavioral practitioner candidate" means a person whose application for licensure has been accepted and who is under supervision for licensure as provided in Section 1935 of this title;

~~7.~~ 8. "Referral activities" means the evaluating of data to identify problems and to determine the advisability of referral to other specialists;

~~8.~~ 9. "Research activities" means reporting, designing, conducting, or consulting on research in behavioral health services;

~~9.~~ 10. "Specialty" means the designation of a subarea of behavioral practice that is recognized by a national certification agency or by the ~~Board~~ Department; and

~~10.~~ 11. "Supervisor" means a person who meets the requirements established by the ~~Board~~; and Department

~~11.~~ "Executive Director" means the ~~Executive Director of the State Board of Behavioral Health Licensure.~~

SECTION 35. AMENDATORY 59 O.S. 2021, Section 1934, is amended to read as follows:

Section 1934. A. The ~~State Board of Behavioral Health Licensure~~ Oklahoma Department of Mental Health and Substance Abuse Services shall:

1        1. Prescribe, adopt, and promulgate rules to implement and  
2 enforce the provisions of the Licensed Behavioral Practitioner Act,  
3 including the adoption of State Department of Health rules by  
4 reference;

5        2. Adopt and establish rules of professional conduct; and

6        3. Set license and examination fees as required by the Licensed  
7 Behavioral Practitioner Act.

8        B. The ~~Board~~ Department shall have the authority to:

9        1. Seek injunctive relief;

10       2. Request the district attorney to bring an action to enforce  
11 the provisions of the Licensed Behavioral Practitioner Act;

12       3. Receive fees and deposit the fees into the Licensed  
13 Behavioral Practitioners Revolving Fund as required by the Licensed  
14 Behavioral Practitioner Act;

15       4. Issue, renew, revoke, deny, suspend and place on probation  
16 licenses to practice behavioral health pursuant to the provisions of  
17 the Licensed Behavioral Practitioner Act;

18       5. Examine all qualified applicants for licenses to practice  
19 behavioral health;

20       6. Investigate complaints and possible violations of the  
21 Licensed Behavioral Practitioner Act;

22       7. Accept grants and gifts from various foundations and  
23 institutions;

1        8. Make such expenditures and employ such personnel as the  
2 Commissioner may deem necessary for the administration of the  
3 Licensed Behavioral Practitioner Act; and

4        9. Request assistance from the State Board of Medical Licensure  
5 and Supervision for the purposes of investigating complaints and  
6 violations of the Licensed Behavioral Practitioner Act.

7        SECTION 36.        AMENDATORY        59 O.S. 2021, Section 1935, is  
8 amended to read as follows:

9        Section 1935. A. Applications for a license to practice as a  
10 licensed behavioral practitioner shall be made to the ~~State Board of~~  
11 ~~Behavioral Health Licensure~~ Oklahoma Department of Mental Health and  
12 Substance Abuse Services in writing. Such applications shall be on  
13 a form and in a manner prescribed by the ~~Board~~ Department. The  
14 application shall be accompanied by the fee required by the Licensed  
15 Behavioral Practitioner Act, which shall be retained by the ~~Board~~  
16 Department and not returned to the applicant.

17        B. Each applicant for a license to practice as a licensed  
18 behavioral practitioner shall:

19        1. Pass an examination based on standards promulgated by the  
20 ~~Board~~ Department pursuant to the Licensed Behavioral Practitioner  
21 Act;

22        2. Be at least twenty-one (21) years of age;  
23  
24

1       3. Not have engaged in, nor be engaged in, any practice or  
2 conduct which would be grounds for denying, revoking, or suspending  
3 a license pursuant to the Licensed Behavioral Practitioner Act; and

4       4. Otherwise comply with the rules promulgated by the ~~Board~~  
5 Department pursuant to the provisions of the Licensed Behavioral  
6 Practitioner Act.

7       C. In addition to the qualifications specified by the  
8 provisions of subsection B of this section, an applicant for a  
9 license to practice as a licensed behavioral practitioner shall  
10 have:

11       1. Successfully completed at least forty-five (45) graduate  
12 semester hours (sixty (60) graduate quarter hours) of behavioral-  
13 science-related course work. These forty-five (45) hours shall  
14 include at least a master's degree from a program in psychology.  
15 All course work and degrees shall be earned from a regionally  
16 accredited college or university. The ~~Board~~ Department shall define  
17 what course work qualifies as "behavioral-science-related";

18       2. On or after January 1, 2008, successfully completed at least  
19 sixty (60) graduate semester hours (ninety (90) graduate quarter  
20 hours) of behavioral-science-related course work. These sixty (60)  
21 hours shall include at least a master's degree from a program in  
22 psychology. All courses shall be earned from a regionally  
23 accredited college or university.

1       The ~~Board~~ Department shall define what course work qualifies as  
2 "behavioral-science-related"; and

3       3. Three (3) years of supervised full-time experience in  
4 professional behavioral health services subject to the supervision  
5 of a licensed mental health professional pursuant to conditions  
6 established by the ~~Board~~ Department. One (1) or two (2) years of  
7 experience may be gained at the rate of one (1) year for each thirty  
8 (30) graduate semester hours earned beyond the master's degree,  
9 provided that such hours are clearly related to the field of  
10 psychology or behavioral sciences and are acceptable to the ~~Board~~  
11 Department. The applicant shall have no less than one (1) year of  
12 supervised full-time experience in behavioral science.

13       D. Applicants with degrees from schools outside the United  
14 States may qualify with ~~Board~~ Department approval by providing the  
15 ~~Board~~ Department with an acceptable comprehensive evaluation of the  
16 degree performed by a foreign credential evaluation service that is  
17 acceptable to the ~~Board~~ Department, and any other requirement the  
18 ~~Board~~ Department deems necessary.

19       SECTION 37.       AMENDATORY       59 O.S. 2021, Section 1936, is  
20 amended to read as follows:

21       Section 1936. A. Examinations for licensure shall be held at  
22 such times, at such place, and in such manner as the ~~State Board of~~  
23 ~~Behavioral Health Licensure~~ Oklahoma Department of Mental Health and  
24 Substance Abuse Services directs. The examination shall be held at



1 least annually. The ~~Board~~ Department shall determine the acceptable  
2 grade on examinations. The examination shall cover such technical,  
3 professional, and practical subjects as relate to the practice of  
4 behavioral science. If an applicant fails to pass the examination,  
5 the applicant may reapply.

6 B. The ~~Board~~ Department shall preserve answers to any  
7 examination, and the applicant's performance on each section, for a  
8 period of two (2) years following the date of the examination.

9 SECTION 38. AMENDATORY 59 O.S. 2021, Section 1937, is  
10 amended to read as follows:

11 Section 1937. A. An applicant who meets the requirements for  
12 licensure pursuant to the provisions of the Licensed Behavioral  
13 Practitioner Act, has paid the required license fees, and has  
14 otherwise complied with the provisions of the Licensed Behavioral  
15 Practitioner Act shall be licensed by the ~~State Board of Behavioral~~  
16 ~~Health Licensure~~ Oklahoma Department of Mental Health and Substance  
17 Abuse Services.

18 B. Each initial license issued pursuant to the Licensed  
19 Behavioral Practitioner Act shall expire twenty-four (24) months  
20 from the date of issuance unless revoked. A license may be renewed  
21 upon application and payment of fees. The application for renewal  
22 shall be accompanied by evidence satisfactory to the ~~Board~~  
23 Department that the licensed behavioral practitioner has completed  
24 relevant professional or continued educational experience during the

1 previous twenty-four (24) months. Failure to renew a license shall  
2 result in forfeiture of the rights and privileges granted by the  
3 license. A person whose license has expired may make application  
4 within one (1) year following the expiration in writing to the ~~Board~~  
5 Department requesting reinstatement in a manner prescribed by the  
6 ~~Board~~ Department and payment of the fees required by the provisions  
7 of Licensed Behavioral Practitioner Act. The license of a person  
8 whose license has expired for more than one (1) year shall not be  
9 reinstated. A person may apply for a new license as provided in  
10 Section 1935 of this title.

11 C. A licensed behavioral practitioner whose license is current  
12 and in good standing, who wishes to retire the license, may do so by  
13 informing the ~~Board~~ Department in writing and returning the license  
14 to the ~~Board~~ Department. A license so retired shall not be  
15 reinstated but retirement of the license shall preclude a person  
16 from applying for a new license at a future date.

17 SECTION 39. AMENDATORY 59 O.S. 2021, Section 1938, is  
18 amended to read as follows:

19 Section 1938. ~~The State Board of Behavioral Health Licensure~~  
20 Oklahoma Department of Mental Health and Substance Abuse Services  
21 shall have the power to issue a license by endorsement for an  
22 applicant licensed in another state to practice as a behavioral  
23 practitioner or under similar title if the ~~Board~~ Department deems  
24 such applicant to have qualifications comparable to those required

1 under the Licensed Behavioral Practitioner Act and if the ~~Board~~  
2 Department finds the applicant meets the standards, provided by  
3 rule, for license by endorsement.

4 SECTION 40. AMENDATORY 59 O.S. 2021, Section 1940, is  
5 amended to read as follows:

6 Section 1940. A. Any person who represents himself or herself  
7 by the title "Licensed Behavioral Practitioner" or "LBP" without  
8 having first complied with the provisions of the Licensed Behavioral  
9 Practitioner Act, or who otherwise offers to perform behavioral  
10 health services, or who uses the title of Licensed Behavioral  
11 Practitioner or any other name, style, or description denoting that  
12 the person is licensed as a behavioral practitioner, or who  
13 practices behavioral science, upon conviction thereof, shall be  
14 guilty of a misdemeanor and shall be punished by imposition of a  
15 fine of not less than One Hundred Dollars (\$100.00) nor more than  
16 Five Hundred Dollars (\$500.00) for each offense and in addition may  
17 be imprisoned for a term not to exceed six (6) months in the county  
18 jail or by both such fine and imprisonment.

19 B. It shall be unlawful for any person not licensed or  
20 supervised pursuant to or specifically exempt from the Licensed  
21 Behavioral Practitioner Act to advertise or otherwise offer to  
22 perform behavioral health services or to use the title of Licensed  
23 Behavioral Practitioner or any other name, style, or description  
24 denoting that the person is licensed as a licensed behavioral

1 practitioner, or to practice behavioral science. Such action shall  
2 be subject to injunctive action by the ~~State Board of Behavioral~~  
3 ~~Health Licensure~~ Oklahoma Department of Mental Health and Substance  
4 Abuse Services.

5 SECTION 41. AMENDATORY 59 O.S. 2021, Section 1941, is  
6 amended to read as follows:

7 Section 1941. A. The ~~State Board of Behavioral Health~~  
8 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
9 Services may deny, revoke, suspend, or place on probation any  
10 license or specialty designation issued pursuant to the provisions  
11 of the Licensed Behavioral Practitioner Act to a licensed behavioral  
12 practitioner, if the person has:

13 1. Been convicted of a felony crime that substantially relates  
14 to the practice of behavioral health and poses a reasonable threat  
15 to public safety;

16 2. Engaged in fraud or deceit in connection with services  
17 rendered or in establishing needed qualifications pursuant to the  
18 provisions of this act;

19 3. Knowingly aided or abetted a person not licensed pursuant to  
20 these provisions in representing himself or herself as a licensed  
21 behavioral practitioner in this state;

22 4. Engaged in unprofessional conduct as defined by the rules  
23 established by the ~~Board~~ Department;

1        5. Engaged in negligence or wrongful actions in the performance  
2 of the licensee's duties; or

3        6. Misrepresented any information required in obtaining a  
4 license.

5        B. If the ~~Board~~ Department determines that a felony conviction  
6 of an applicant renders the convicted applicant unfit to practice  
7 counseling, the ~~Board~~ Department shall provide notice and  
8 opportunity to the applicant, by certified mail at the last-known  
9 address, for an administrative hearing to contest such determination  
10 before the ~~Board~~ Department may deny the application. The request  
11 shall be made by the applicant within fifteen (15) days of receipt  
12 of the notice.

13        C. No license or specialty designation shall be suspended or  
14 revoked, nor a licensed behavioral practitioner placed on probation,  
15 until notice is served upon the licensed behavioral practitioner and  
16 a hearing is held in conformity with Article II of the  
17 Administrative Procedures Act.

18        D. As used in this section:

19        1. "Substantially relates" means the nature of criminal conduct  
20 for which the person was convicted has a direct bearing on the  
21 fitness or ability to perform one or more of the duties or  
22 responsibilities necessarily related to the occupation; and

23        2. "Poses a reasonable threat" means the nature of criminal  
24 conduct for which the person was convicted involved an act or threat

1 of harm against another and has a bearing on the fitness or ability  
2 to serve the public or work with others in the occupation.

3 SECTION 42. AMENDATORY 59 O.S. 2021, Section 1942, is  
4 amended to read as follows:

5 Section 1942. A. ~~The State Board of Behavioral Health~~  
6 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
7 Services shall promulgate rules governing any licensure action to be  
8 taken pursuant to the Licensed Behavioral Practitioner Act which  
9 shall be consistent with the requirements of notice and hearing  
10 under the Administrative Procedures Act. No action shall be taken  
11 without prior notice unless the ~~Board~~ Department determines that  
12 there exists a threat to the health and safety of the residents of  
13 this state.

14 B. 1. Any person who is determined by the ~~Board~~ Department to  
15 have violated any provision of the Licensed Behavioral Practitioner  
16 Act, or any rule promulgated or order issued pursuant thereto, may  
17 be subject to an administrative penalty.

18 2. The maximum administrative penalty shall not exceed Ten  
19 Thousand Dollars (\$10,000.00).

20 3. Administrative penalties imposed pursuant to this subsection  
21 shall be enforceable in the district courts of this state.

22 4. All administrative penalties collected shall be deposited  
23 into the Licensed Behavioral Practitioner Revolving Fund.

1       SECTION 43.       AMENDATORY       59 O.S. 2021, Section 1944, is  
2 amended to read as follows:

3       Section 1944. All licensed behavioral practitioners, except  
4 those employed by federal, state, or local governmental agencies,  
5 shall, prior to the performance of service, furnish the client with  
6 a copy of the Statement of Professional Disclosure as promulgated by  
7 rule of the ~~State Board of Behavioral Health Licensure~~ Oklahoma  
8 Department of Mental Health and Substance Abuse Services. A current  
9 copy of the document shall be on file with the ~~Board~~ Department at  
10 all times.

11       SECTION 44.       AMENDATORY       59 O.S. 2021, Section 1945, is  
12 amended to read as follows:

13       Section 1945. A. A professional specialty designation area may  
14 be established by the ~~State Board of Behavioral Health Licensure~~  
15 Oklahoma Department of Mental Health and Substance Abuse Services  
16 upon receipt of a petition signed by fifteen qualified persons who  
17 are currently licensed as licensed behavioral practitioners, who  
18 have acquired at least sixty (60) semester hours, to increase to  
19 seventy-five (75) semester hours on and after January 1, 2008, of  
20 graduate credit in behavioral science or psychology-related course  
21 work from a regionally accredited college or university, and who  
22 meet the recognized minimum standards as established by appropriate  
23 nationally recognized certification agencies; provided, however, if  
24 a nationally recognized certification does not exist, the ~~Board~~

1 Department may establish minimum standards for specialty  
2 designations.

3 B. Upon receipt of credentials from the appropriate  
4 certification agency, the ~~Board~~ Department may grant the licensed  
5 behavioral practitioner the appropriate specialty designation. The  
6 licensed behavioral practitioner may attain specialty designation  
7 through examination. A licensed behavioral practitioner shall not  
8 claim or advertise a behavioral health specialty and shall not  
9 incorporate the specialty designation into the professional title of  
10 such licensed behavioral practitioner unless the qualifications and  
11 certification requirements of that specialty have been met and have  
12 been approved by the ~~Board~~ Department and the appropriate  
13 certification agency.

14 SECTION 45. AMENDATORY 59 O.S. 2021, Section 1946, is  
15 amended to read as follows:

16 Section 1946. There is hereby created in the State Treasury a  
17 revolving fund for the ~~State Board of Behavioral Health Licensure~~  
18 Oklahoma Department of Mental Health and Substance Abuse Services,  
19 to be designated the "Licensed Behavioral Practitioners Revolving  
20 Fund". The fund shall be a continuing fund, not subject to fiscal  
21 year limitations, and shall consist of all monies received pursuant  
22 to this act. All monies accruing to the credit of the fund are  
23 hereby appropriated and may be budgeted and expended by the  
24 ~~Executive Director~~ Commissioner to meet expenses necessary for



1 carrying out the purpose of the Licensed Behavioral Practitioner  
2 Act. Expenditures from the fund shall be approved by the ~~Board~~  
3 Department and shall be made upon warrants issued by the State  
4 Treasurer against claims filed as prescribed by law with the  
5 Director of the Office of Management and Enterprise Services for  
6 approval and payment.

7 SECTION 46. AMENDATORY 59 O.S. 2021, Section 1947, is  
8 amended to read as follows:

9 Section 1947. A. Licensing fees and annual renewal fees shall  
10 be amounts fixed by the ~~State Board of Behavioral Health Licensure~~  
11 Oklahoma Department of Mental Health and Substance Abuse Services.

12 The ~~Board~~ Department shall fix the amount of the fees so that the  
13 total fees collected will be sufficient to meet the expenses of  
14 administering the provisions of the Licensed Behavioral Practitioner  
15 Act and so that excess funds do not accumulate from year to year in  
16 the Licensed Behavioral Practitioners Revolving Fund.

17 B. 1. The ~~Board~~ Department shall not fix a license fee at an  
18 amount in excess of Three Hundred Dollars (\$300.00) and a renewal  
19 fee at an amount in excess of Two Hundred Dollars (\$200.00).

20 2. The fee for the issuance of a license to replace a license  
21 which was lost, destroyed, or mutilated shall be Twenty-five Dollars  
22 (\$25.00).

23 3. The fee shall accompany the application for a replacement  
24 license.

1        4. The fee for specialty designation shall not exceed One  
2 Hundred Fifty Dollars (\$150.00).

3        5. The fee for an examination required pursuant to the Licensed  
4 Behavioral Practitioner Act shall not exceed the actual costs  
5 incurred by the Department for holding and grading examinations.

6        SECTION 47.        AMENDATORY        59 O.S. 2021, Section 1948, is  
7 amended to read as follows:

8        Section 1948. All licensed behavioral practitioners licensed  
9 pursuant to the Licensed Behavioral Practitioner Act shall be  
10 required to satisfactorily complete ten (10) hours of continuing  
11 education credits annually. The ~~State Board of Behavioral Health~~  
12 ~~Licensure~~ Oklahoma Department of Mental Health and Substance Abuse  
13 Services shall provide forms and require verification of such  
14 credits. Such credits shall be earned from courses on empirically  
15 validated procedures, taught by instructors certified by the  
16 American Association of Masters in Psychology, its designees or  
17 successors.

18        SECTION 48.        AMENDATORY        59 O.S. 2021, Section 1949, is  
19 amended to read as follows:

20        Section 1949. A. Until January 1, 2002, the ~~State Board of~~  
21 ~~Behavioral Health Licensure~~ Oklahoma Department of Mental Health and  
22 Substance Abuse Services, upon receipt of an applicant's proper  
23 application, completion of examination, and payment of fees, shall  
24 issue licenses to persons who, prior to January 1, 2002:

1        1. Have practiced full time as a behavioral practitioner for at  
2 least two (2) years and possess a master's degree from a program in  
3 psychology from a college or university accredited by an agency  
4 recognized by the United States Department of Education;

5        2. Are currently practicing as a behavioral practitioner;

6        3. Have satisfactorily completed ten (10) hours of continuing  
7 education pursuant to Section 1948 of this title; and

8        4. Otherwise comply with the licensure requirements of the  
9 Licensed Behavioral Practitioner Act.

10       B. The ~~Board~~ Department shall consider experience of the  
11 applicant prior to application for licensure pursuant to the  
12 provisions of this section as a waiver of all or part of the  
13 supervised experience requirement required by paragraph 3 of  
14 subsection C of Section 1935 of this title.

15       C. The ~~Board~~ Department shall require applicants for licensure  
16 pursuant to the provisions of this section to file a Statement of  
17 Professional Disclosure as provided by Section 1944 of this title.

18       SECTION 49.        AMENDATORY        63 O.S. 2021, Section 1-2506.1,  
19 as amended by Section 1, Chapter 45, O.S.L. 2024 (63 O.S. Supp.  
20 2025, Section 1-2506.1), is amended to read as follows:

21       Section 1-2506.1. A. As used in this section:

22       1. "Certified alcohol and drug counselor" means any person who  
23 is not exempt pursuant to the provisions of Section 1872 of Title 59  
24 of the Oklahoma Statutes and is not licensed under the Licensed

1 Alcohol and Drug Counselors Act, but who provides alcohol and drug  
2 counseling services within the scope of practice while employed by  
3 an entity certified by the Department of Mental Health and Substance  
4 Abuse Services, or who is exempt from such certification, or who is  
5 under the supervision of a person recognized by the Oklahoma ~~Board~~  
6 ~~of Licensed Alcohol and Drug Counselors~~ Department of Mental Health  
7 and Substance Abuse Services as a supervisor. A certified alcohol  
8 and drug counselor may provide counseling services for co-occurring  
9 disorders if he or she has been certified by the ~~Board~~ Department to  
10 provide counseling as provided in this section for co-occurring  
11 disorders;

12 2. "Emergency opioid antagonist" means a drug including, but  
13 not limited to, naloxone that blocks the effects of opioids and that  
14 is approved by the United States Food and Drug Administration for  
15 the treatment of an opioid overdose;

16 3. "Licensed alcohol and drug counselor" means any person who  
17 provides alcohol and drug counseling services within the scope of  
18 practice, including co-occurring disorders, for compensation to any  
19 person and is licensed pursuant to the provisions of the Licensed  
20 Alcohol and Drug Counselors Act. The term licensed alcohol and drug  
21 counselor shall not include those professions exempted by Section  
22 1872 of Title 59 of the Oklahoma Statutes; and

23 4. "Medical personnel at schools" means a certified school  
24 nurse or any other nurse employed by or under contract with a

1 school, any licensed practitioner of the healing arts, or any person  
2 designated by the school administration to administer an emergency  
3 opioid antagonist in the event of a suspected overdose pursuant to  
4 Section 1210.242 of Title 70 of the Oklahoma Statutes.

5 B. First responders shall have the authority to administer,  
6 without prescription, emergency opioid antagonists when encountering  
7 an individual exhibiting signs of an opioid overdose.

8 C. First responders may provide, without prescription,  
9 emergency opioid antagonists to individuals who have experienced or  
10 witnessed an opioid overdose for use by those individuals at a later  
11 date.

12 D. For the purposes of this section, a first responder shall  
13 include:

- 14 1. Law enforcement officials;
- 15 2. Emergency medical technicians;
- 16 3. Firefighters;
- 17 4. Medical personnel at schools including any public or charter  
18 schools, technology center schools and institutions of higher  
19 education;
- 20 5. Forensic laboratory personnel of the Oklahoma State Bureau  
21 of Investigation as designated by the Director;
- 22 6. Personnel of the Department of Corrections or of any entity  
23 that contracts with the Department of Corrections to provide housing  
24 or services for inmates of the Department of Corrections; and

1        7. Certified alcohol and drug counselors and licensed alcohol  
2 and drug counselors.

3        E. Any first responder who administers or provides an emergency  
4 opioid antagonist in good faith and in a manner consistent with  
5 addressing opioid overdose shall not be liable for any civil damages  
6 as a result of any acts or omissions by such first responder except  
7 for committing gross negligence or willful wanton wrongs in  
8 administering or providing such emergency opioid antagonist.

9        SECTION 50.        REPEALER        59 O.S. 2021, Section 1873, as last  
10 amended by Section 1, Chapter 266, O.S.L. 2025 (59 O.S. Supp. 2025,  
11 Section 1873), is hereby repealed.

12        SECTION 51.        REPEALER        59 O.S. 2021, Section 1873, as last  
13 amended by Section 1, Chapter 235, O.S.L. 2025 (59 O.S. Supp. 2025,  
14 Section 1873), is hereby repealed.

15        SECTION 52.        REPEALER        59 O.S. 2021, Section 1874, is  
16 hereby repealed.

17        SECTION 53.        REPEALER        59 O.S. 2021, Section 6001, as last  
18 amended by Section 1, Chapter 89, O.S.L. 2023 (59 O.S. Supp. 2025,  
19 Section 6001), is hereby repealed.

20        SECTION 54. This act shall become effective November 1, 2026.  
21

22        60-2-14261        TJ        01/07/26  
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